

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 21-05

MCS INDUSTRIES, INC. v. MSC MEDITERRANEAN SHIPPING COMPANY SA

**COMPLAINANT MCS INDUSTRIES, INC.’S MOTION FOR CONFIDENTIAL
TREATMENT OF EXHIBITS FILED IN SUPPORT OF BRIEF ON REMAND**

Pursuant to Rule 5(b) of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (the “Rules”) and the Confidentiality Stipulation and Protective Order entered by the Presiding Officer in this action, *see* Dkt. 19–20 (the “Protective Order”), Complainant MCS Industries, Inc. (“Complainant”), by and through its undersigned attorneys, respectfully moves for confidential treatment of the exhibits (the “Exhibits”) to the Declaration of Brittany Montesano (the “Declaration”) filed in support of MCS Industries’ Brief on Remand.

The Exhibits for which confidential treatment is sought consist of the following:

- Exhibit 1 is a copy of MCS Industries’ non-public Ocean Carrier Agreement with Respondent MSC Mediterranean Shipping Company SA (“Mediterranean”), effective as of May 1, 2020 and covering the time period from May 1, 2020 through April 30, 2021 (the “2020 Service Contract”), which has been designated “Confidential” pursuant to the Protective Order.
- Exhibit 2 is a copy of the non-public First Amendment to the 2020 Service Contract (i.e., an amended version of the 2020 Service Contract), which has been designated “Confidential” pursuant to the Protective Order.

- Exhibit 3 is a copy of MCS Industries’ non-public Ocean Carrier Agreement with Mediterranean, effective as of May 1, 2021 and covering the time period from May 1, 2021 through April 30, 2022 (the “2021 Service Contract” and, collectively with the 2020 Service Contract, the “2020 and 2021 Service Contracts”), which has been designated “Confidential” pursuant to the Protective Order.
- Exhibit 4 is an Excel spreadsheet containing detailed information, including non-public competitive pricing data, concerning shipments of MCS Industries’ cargo carried pursuant to arrangements with ocean transportation intermediaries or suppliers (and not pursuant to the 2020 Service Contract, the 2021 Service Contract, or a service contract between MCS Industries and another vessel-operating common carrier), which has been designated “Outside Counsel Eyes Only” pursuant to the Protective Order.
- Exhibit 5 consists of copies of the third-party invoices and associated documentation for the shipments listed in Exhibit 4, which include non-public competitive pricing data and cost data concerning not only ocean freight costs but also merchandise costs and supplier pricing for the products shipped.

Good cause exists for the confidential treatment of the Exhibits, as they are subject to the Protective Order in this action and have been designated pursuant to that Protective Order. The Protective Order entered by the Presiding Officer specifically contemplated that “unpublished business . . . data”, “customer information”, “operational . . . information”, and other information of a nonpublic nature” believed “to be commercially [or] competitively . . . sensitive” could be designated “Confidential” and thereby protected from public distribution or dissemination. *See* Dkt. 19 ¶¶ 1, 6, 8. Similarly, the Protective Order specifically contemplated that “Confidential” information that “has a substantial probability of jeopardizing” a party’s “competitive business

interests or the competitive or privacy interests of” such party’s “suppliers, service providers, customers or clients” or of the party itself could be designated “Outside Counsel Eyes Only” and also thereby protected from public distribution or dissemination. *See id.* ¶¶ 2, 7, 8. MCS Industries believes that the nature and contents of each of the Exhibits is consistent with its respective confidentiality designation.

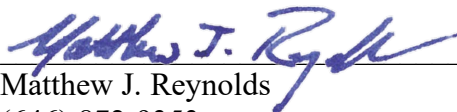
Pursuant to Rule 5(a)(2)(ii), MCS Industries intends to file within three business days of the provision of the confidential, unredacted Exhibits to the Presiding Officer redacted public versions of the Exhibits for placement on the public docket of this action. MCS Industries does not believe any portions of its Brief on Remand or the Declaration to which the Exhibits are attached would require confidential treatment.

WHEREFORE, MCS Industries respectfully requests that the confidential, unredacted versions of the Exhibits filed with the Declaration be treated confidentially and *not* be placed on the public docket of this action.

Dated: January 19, 2024

Respectfully submitted,

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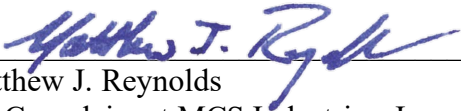
Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondent MSC Mediterranean Shipping Company SA by emailing copies of those documents to its counsel of record listed below:

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Dated: January 19, 2024



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